

INDIVIDUAL OPINION BY M. ANZILOTTI.

[*Translation.*]

Although I am in agreement with the Court's conclusion, my point of view is widely different. Owing to the importance of the case and the grave legal problems involved, I consider it my duty to make use of the right conferred upon me by the Rules and to state my personal opinion as briefly as possible, as well as the reasons which have enabled me to accept the conclusion of the present Advisory Opinion.

1.—In the first place, we must consider what is the real question which the Court was called upon to decide.

The Council asks whether "a régime established between Germany and Austria on the basis and within the limits of the principles laid down by the Protocol of March 19th, 1931," would "be compatible with Article 88 of the Treaty of Saint-Germain and with Protocol No. I signed at Geneva on October 4th, 1922".

Neither Article 88 of the Treaty of Saint-Germain nor the Geneva Protocol of October 4th, 1922, imposes upon Austria any obligations other than to abstain from certain acts otherwise than with the consent of the Council of the League of Nations. The régime in question would only be incompatible with Article 88 of the Treaty of Saint-Germain or with the Protocol of Geneva if that consent of the Council were necessary and Austria failed to obtain it.

Accordingly, the question put to the Court is whether the conclusion of a Customs Union with Germany on the basis and within the limits of the Protocol of March 19th, 1931, is among the acts from which Austria must abstain otherwise than with the consent of the Council of the League of Nations. It is indeed from this aspect that the question was discussed before the Court. Germany and Austria maintain that the proposed Customs Union would not be included among the acts for which the Treaty of Saint-Germain and the Geneva

Protocol require the consent of the Council, while France, Italy and Czechoslovakia maintain the contrary.

The dispute upon which the Court is asked to give its opinion therefore relates to the applicability of the provisions of Article 88 and the Geneva Protocol to this particular case. The reply will have the following effect: either the said provisions are not applicable to this case (so-called theory of *compatibility*), so that Austria is free to conclude the Customs Union with Germany; or these provisions or some of them are applicable to the case (so-called theory of *incompatibility*), and Austria must abstain from concluding the Customs Union with Germany or must apply to the Council for its consent.

2.—When Article 88 of the Treaty of Saint-Germain and the Geneva Protocol require Austria to abstain from certain acts otherwise than with the consent of the Council of the League of Nations, the purpose is to give effect to the principle contained in the first part of the said Article 88: "The independence of Austria is inalienable otherwise than with the consent of the Council of the League of Nations." We must therefore first of all study the meaning and consequences of this principle.

The idea that Austria's independence is inalienable except with the consent of the Council of the League of Nations has its origin in Article 80 of the Treaty of Versailles. That article imposed upon Germany two obligations: to acknowledge and respect "strictly" the independence of Austria, within the frontiers which may be fixed in a treaty between that State and the Principal Allied and Associated Powers; and to agree that "this independence shall be inalienable, except with the consent of the Council of the League of Nations". There is little doubt that this provision, which has no counterpart in the other treaties of peace, was adopted in order to secure Austria's existence against the danger of incorporation within the German Reich.

Article 88 merely repeats and generalizes the principle already enunciated in the Treaty of Versailles. The idea underlying this article is that Austria's existence within the

frontiers fixed for her is an essential element in the political system created by the peace treaties. The real aim of the principle contained in the first part of Article 88 is to secure that existence and to prevent Austria from being absorbed within another State or coming under the dependence of another State, unless the Council of the League of Nations, the sovereign judge of political situations and of the requirements of peace, shall so dispose.

We may therefore affirm that this article was not adopted in the interests of Austria, but in the interests of Europe as a whole, and thus it will be readily understood that Article 88, far from granting Austria rights, only imposes upon her obligations.

3.—We must now define the meaning and scope of the terms “independence” and “inalienable” in the first part of Article 88.

With regard to the former, I think the foregoing observations show that the independence of Austria within the meaning of Article 88 is nothing else but the existence of Austria, within the frontiers laid down by the Treaty of Saint-Germain, as a separate State and not subject to the authority of any other State or group of States. Independence as thus understood is really no more than the normal condition of States according to international law; it may also be described as *sovereignty* (*suprema potestas*), or *external sovereignty*, by which is meant that the State has over it no other authority than that of international law.

The conception of independence, regarded as the normal characteristic of States as subjects of international law, cannot be better defined than by comparing it with the exceptional and, to some extent, abnormal class of States known as “dependent States”. These are States subject to the authority of one or more other States. The idea of dependence therefore necessarily implies a relation between a superior State (suzerain, protector, etc.) and an inferior or subject State (vassal, *protégé*, etc.); the relation between the State which can legally impose its will and the State which is legally compelled to submit to that will. Where there is no such relation of superiority and subordination, it is impossible to speak of dependence within the meaning of international law.

It follows that the legal conception of independence has nothing to do with a State's subordination to international law or with the numerous and constantly increasing states of *de facto* dependence which characterize the relation of one country to other countries.

It also follows that the restrictions upon a State's liberty, whether arising out of ordinary international law or contractual engagements, do not as such in the least affect its independence. As long as these restrictions do not place the State under the legal authority of another State, the former remains an independent State however extensive and burdensome those obligations may be.

This is obviously the standpoint of the Treaty of Saint-Germain when it proclaims the independence of Austria despite the many serious restrictions it imposes upon her freedom in the economic, military and other spheres. These restrictions do not put Austria under the authority of the other contracting States, which means that Austria is an independent State within the meaning of international law. This is the independence which Article 88 declares to be "inalienable". What now is the meaning of that term?

4.—The idea naturally suggested by the word "alienate" is the transfer of something from one person to another, but it seems that the word may also mean: "lose of one's own accord", "get rid of", "renounce", etc. We may question the possibility of transferring so strictly personal a quality as a State's independence; on the other hand, it will be admitted that this quality ceases to exist by the will of the State itself when the latter agrees to renounce it in favour of another State, for example, by becoming absorbed in the latter or placing itself under the latter's authority.

Whatever may be said as to the exact meaning of this word, the idea that it seems to express is clear enough: Austria must not voluntarily lose her existence as an independent State otherwise than with the consent of the Council of the League of Nations.

This being so, Article 88 marks a twofold departure from ordinary international law.

According to ordinary international law, every country is free to renounce its independence and even its existence; this rule does not apply to Austria who, under Article 88, cannot voluntarily lose her independence, still less therefore her existence, except with the consent of the Council of the League of Nations.

Similarly, according to ordinary international law, each country must respect the independence of other countries, but it is not forbidden to agree to another State's voluntarily renouncing its independence in its favour. This is not allowed in the case of Austria, as regards the signatory States to the Treaty of Saint-Germain, except of course with the consent of the Council of the League of Nations.

5.—I now pass on to the second part of Article 88, which is as follows:

“Consequently, Austria undertakes in the absence of the consent of the said Council to abstain from any act which might directly or indirectly or by any means whatever compromise her independence, particularly, and until her admission to membership of the League of Nations, by participation in the affairs of another Power.”

We must determine—and, as I shall show later, the whole case turns on this—what acts are contemplated by this provision.

The foregoing observations show that the principle contained in the first part of Article 88 of itself creates certain obligations for Austria and the other contracting States. Obligations similar to those of the latter States are explicitly imposed upon Germany by Article 80 of the Treaty of Versailles (*supra*, No. 2). The second part of Article 88 refers directly to Austria alone and requires her to abstain from any act which may directly or indirectly or by any means whatever compromise her independence, in the absence of the consent of the Council of the League of Nations.

On the strength of the connection between the second and first sentences of Article 88 and clearly expressed by the word “consequently”, the German and Austrian Governments

have argued that the acts from which Austria must abstain in the absence of the Council's consent are acts which alienate her independence, or which can be assimilated to an alienation of independence. If I understand their argument rightly, they say that what Austria is forbidden to do by the first sentence in Article 88 is to alienate her independence; since the second sentence merely draws consequences from the first sentence, the acts from which Austria must abstain can only be acts of alienation or acts amounting to alienation.

This argument must be most carefully examined, for the reply to be given to the Council depends almost entirely upon this point. If the acts from which Austria must abstain in the absence of the Council's consent are only acts of alienation or acts amounting to an alienation of independence, the answer must be in the affirmative; if not, in the negative. And the efforts of the representatives of the German and Austrian Governments have been devoted mainly to this question.

6.—In my opinion, the arguments of these Governments do not hold and for the following reasons.

(a) Undoubtedly the second sentence in Article 88 is connected with the first by the word "consequently". But this word does not necessarily imply that the second sentence merely draws the logical consequences from the principle laid down in the first; it may just as well mean that the second sentence lays down rules the purpose of which is to ensure effect being given to this principle. Both interpretations are undoubtedly possible, and therefore we must study the text itself to see whether the second sentence in Article 88 merely draws consequences from and applies the first, or whether it adds further obligations in order to give effect thereto.

(b) It is a fundamental rule of interpretation that words must be given the ordinary meaning which they bear in their context unless such an interpretation leads to unreasonable or absurd results.

If we give to the words in the second sentence of Article 88—disregarding for the moment the last clause—the meaning they normally bear in their context, it is hard to admit that the acts in question are only acts of alienation or acts amounting to an alienation of independence. The ordinary meaning of the word “compromise” is certainly not “to alienate”; an “act which might compromise independence” is, in the ordinary meaning of the words, an act calculated to place independence in danger. If we take the ordinary meaning of the words in their context, an act may very well compromise a State’s independence directly or indirectly or by one means or another, but I do not see how all this can be made to apply to alienation.

Quite clearly the normal meaning of the words in the context of the second sentence of Article 88 is not the meaning given to them in the arguments of the German and Austrian Governments. If we interpret the words according to the meaning they would normally bear in their context, the conclusion is rather that Austria is obliged to abstain from certain acts which are not or are not necessarily acts alienating her independence, but which are calculated to expose that independence to danger.

Putting aside for the moment a more exact definition of the acts in question, this interpretation cannot, I think, be regarded as leading to an unreasonable or absurd result. On the contrary, it seems to me perfectly intelligible that, in order to secure Austria’s existence, for important political reasons, an attempt was made to prevent her, in the absence of the Council’s consent, from accomplishing certain acts which, although they left her independence formally intact, would expose it to danger. Elementary rules of political foresight would suggest to the authors of the Treaty of Saint-Germain that they should put the Council in a position to prevent acts of this kind and to intervene before some final, and therefore by that time perhaps inevitable, act was on the point of accomplishment. Accordingly, the result to

which the natural meaning of the words in their context leads us being perfectly reasonable, this is the interpretation which must be adopted.

(c) The interpretation of the second sentence of Article 88 by the German and Austrian Governments appears to me unacceptable also from another point of view. Since the obligation upon Austria not to alienate her independence, either openly or in a disguised manner, arises out of the first sentence of the article, the second would be perfectly superfluous if it merely means that Austria is to abstain in the absence of the Council's consent from any act of overt or covert alienation. The Austro-German argument really deprives the second sentence of all importance, and thus it runs counter to a fundamental rule in the interpretation of legal texts according to which, when there are two interpretations, one of them attributing a reasonable meaning to each part of the text and the other not fulfilling these conditions, the first must be preferred.

(d) It must be observed lastly that Article 88 itself furnishes definite evidence that the acts referred to in the text include not only acts of alienation of independence. I would refer to the last clause of the article where it says: "particularly, and until her admission to membership of the League of Nations, by participation in the affairs of another Power".

I am well aware that the clause was in all probability the outcome of the incident of Article 6r of the Constitution of Weimar. I might also admit for the sake of argument, and subject to an express reservation on the point, that this clause applied only up to the point when Austria entered the League of Nations and that since that time it has ceased to be applicable. It is nevertheless true, and this is what matters, that when Article 88 cites as an example an act from which Austria is to abstain except with the consent of the Council of the League of Nations, that example is not an act of alienation or one amounting to an act of alienation; it is merely an act which might expose that

independence to danger. It is difficult to see how this may be reconciled with the view that this article was intended to prohibit only acts of alienation of independence.

7.—The conclusion which seems to follow from the foregoing considerations is that Article 88 of the Treaty of Saint-Germain contemplates two kinds of acts from which Austria is to abstain except with the consent of the Council of the League of Nations.

(A) So-called acts of alienation of independence; or to be more accurate—acts by which Austria would renounce her independence in favour of another State, such, for example, as a treaty by which Austria agreed to be incorporated in the German Reich, or by which she undertook to join a Federal State, etc. It will readily be admitted that cases of this kind, while they are the most serious, are not the most probable.

(B) Acts which, while leaving Austria her independence, would have the effect of exposing that independence to danger. I do not think these acts can be more exactly defined than by saying that they must be acts which, as far as can be reasonably foreseen, would endanger that independence. A treaty by which Austria undertook to intervene in the affairs of other Powers; the adoption of a constitutional law under which the head of another State would of right be President of the Austrian Republic. These seem to be undoubted examples of this class of acts looked at from a general standpoint. But it must be added at once that, from their very nature, acts of this kind are particular instances: an act which in certain circumstances presents no danger whatsoever to a State's independence may well be extremely dangerous in circumstances of another kind.

It follows that in order to establish the compatibility of the Austro-German Customs régime with Article 88 of the Treaty of Saint-Germain, that régime must be neither a so-called act of alienation of Austria's independence nor an act which,

while leaving this independence formally intact, would be susceptible of exposing it to danger. Both conditions are equally necessary and on all fours with each other.

8.—I pass now to the Geneva Protocol of October 4th, 1922.

It is above all on this point that I find myself at variance with the grounds of the present Opinion. The Court's argument seems to be as follows: A régime established between Austria and Germany on the basis and within the limits of the principles laid down in the Protocol of March 19th, 1931, is not necessarily incompatible with Article 88 of the Treaty of Saint-Germain, but is incompatible with the Geneva Protocol. In my view, on the contrary, that régime can only be incompatible with the Geneva Protocol if it is incompatible with Article 88 of the Treaty of Saint-Germain, since the Geneva Protocol does not impose on Austria, as regards her independence, any obligation which does not already ensue from that article.

It is an arguable question whether the States who in 1922 signed the Geneva Protocol were in a position to modify *inter se* the provisions of Article 88, which provisions, as I have already pointed out (*supra*, No. 2), form an essential part of the peace settlement and were adopted not in the interests of any given State, but in the higher interest of the European political system and with a view to the maintenance of peace. However that may be, I am content to observe that, as regards the obligations devolving upon Austria, the Protocol is covered by the provisions of Article 88.

I leave on one side the close relation between the first and second parts of this Protocol, which tends to support my argument, and I confine myself to the following observations.

As regards the first paragraph of Part II of the Protocol, it has not been disputed that it corresponds exactly to the first part of Article 88. Obviously, when this paragraph speaks of "any negotiations or any economic or financial engagement", it says nothing that is not covered by the

expression "any act" contained in Article 88. The variation is easily explained if regard be had to the subject matter and the purpose of the Protocol.

As regards the second paragraph, it seems that the Court's opinion is chiefly based on the last part of it. It must therefore be closely examined.

This part, starting with the words "provided always", etc., follows in the context an enumeration of matters which are not affected by the obligations devolving upon Austria in accordance with the terms of the preceding paragraph which themselves are "in accordance with the terms of Article 88 of the Treaty of Saint-Germain". If this last part limits those matters not falling under the scope of Article 88, obviously it refers back to that article. In fact, Austria is not obliged not to grant a special régime or exclusive advantages. Her obligation consists in the duty not to violate her economic independence by granting to any State a "special régime or exclusive advantages" calculated to threaten this independence, and therefore to abstain from any "act calculated to compromise her independence". The last part of the second paragraph of Part II of the Protocol thus is only a particular application of Austria's obligations under Article 88 of the Treaty of Saint-Germain.

It is true that the section which we are considering speaks of "economic independence" and prohibits Austria from granting a special régime or exclusive advantages calculated to threaten "this independence", whereas Article 88 refers to Austria's independence without further qualification. It seems certain, however, that if a legal meaning can be attributed to the expression "economic independence", this meaning must be "the independence of a State in the economic sphere". Accordingly, what the last part of the second paragraph of the Protocol prohibits Austria from doing is to compromise her independence in the economic sphere. Here again there is nothing which is not already covered by the obligations ensuing from Article 88.

It follows that the question raised by this section of the Protocol, namely whether the Austro-German Customs Union would constitute a special régime or exclusive advantages

calculated to threaten Austria's economic independence is embraced by the more general question which has to be considered on the basis of Article 88, namely whether the customs union, though leaving Austria her independence, would have the effect of endangering that independence.

It follows also that the question whether, having regard to No. 2 of the first article of the Vienna Protocol, the régime established by this Protocol is to be regarded as a special régime or as constituting exclusive advantages, is not of much importance. In the necessary appraisal of this régime from the point of view of the dangers to which it might expose Austria's independence, due regard must of course be had to this clause in so far as it is capable of practical application; the rest is in reality a question of words.

9.—I thus find myself impelled to the conclusion which I had reached on the basis of Article 88 of the Treaty of Saint-Germain: the Austro-German Customs régime will only be compatible with the provisions mentioned in the Council's request provided that

(a) it is not in the nature of a so-called alienation of Austria's independence, and

(b) it is not capable, so far as can reasonably be foreseen, of exposing that independence to any danger.

With regard to the first point, it is to be noticed that the régime provided for by the Protocol of March 19th, 1931, is established on a footing of complete legal equality and reciprocity. Now, though it is no doubt possible that two States which stand in the relationship of superior and subordinate may contract between them absolutely equal and reciprocal obligations, it is on the other hand difficult to conceive how such a relationship can result from a treaty which, being concluded between equals, creates none but reciprocal obligations.

To my mind, the objection that in this case there would be two impairments of independence instead of one only, which impairments would subsist side by side without mutually cancelling each other and one of which, namely that of Germany's independence, would be lawful, whilst the other, that of Austria's independence, would be unlawful, confuses

the ideas of independence and of liberty (see *supra*, No. 3). If Austria, which is now Germany's equal, contracts towards the latter an obligation equal to that which Germany contracts towards Austria, the legal position of the two States in relation to each other, in so far as concerns their reciprocal independence, is not changed, though their liberty is more restricted than before. Austria's independence would only be affected by a régime giving Germany a position of legal superiority; but such a position cannot ensue from a treaty which is recognized to have been drawn up on a basis of absolute legal equality and reciprocity.

Similarly, no importance attaches to the observation that though the obligations ensuing from the proposed Customs Union are equal and reciprocal, in practice this reciprocity would not operate in such a way that the impairment of Austria's liberty would be offset by the impairment of Germany's liberty. This contingency, which I consider extremely probable, may be of importance when appraising the danger to which the conclusion of the Customs Union would expose Austria's independence; but it is irrelevant to the question whether reciprocity of obligations is compatible with alienation of independence.

I do not think it necessary to dwell on this point. The arguments whereby it has been sought to show that certain clauses of the Protocol of Vienna are in the nature of an alienation of Austria's independence, appear to be based on a conception of this independence different from that of Article 88; accordingly, a reference to this conception (*supra*, No. 3) will suffice to show that these arguments cannot be regarded as sound.

10.—The question whether the Austro-German Customs Union contemplated by the Vienna Protocol must be considered as an act susceptible of endangering Austria's independence is to my mind quite a different question and a much more important one.

While the question discussed above relates to the legal consequences which would ensue from the Vienna Protocol and is accordingly purely a question of law, the one with which I am now concerned is a question of fact. In accord-

ance with what has been said above (*supra*, No. 7), the question amounts to asking whether, in view on the one hand of the respective positions of Austria and Germany, and in view, on the other hand, of the consequences which the Customs Union would have on Austria's economic life, it can reasonably be foreseen that a dangerous situation would ensue for the independence of Austria.

We are therefore definitely concerned with a particular instance and, I must add, an instance which derives all its importance from the fact that we are dealing with the relations between Germany and Austria. It is quite probable that a similar customs union, or even a closer union between Austria and Czechoslovakia, would not have raised the slightest difficulty. It is not Austria's right to enter into customs unions in general with which we are concerned. In my view, this right is unquestionable, and I freely admit that it was recognized by the Council in its Resolution of December 9th, 1925. But we are concerned with *this* Customs Union and *this* Customs Union alone.

Before going on to deal with the question I have just raised, I must make the following observations.

Everything points to the fact that the answer depends on considerations which are for the most part, if not entirely, of a political and economic kind. It may therefore be asked whether the Council really wished to obtain the Court's opinion on this aspect of the question and whether the Court ought to deal with it.

As regards the first point, it seems to follow from the observations repeatedly set forth above, and especially from Nos. 1 and 7, that it is scarcely possible to answer the Council's question as to the applicability of Article 88 of the Treaty of Saint-Germain to the case before us without also resolving both the question of law indicated in No. 9 and the question of fact mentioned in No. 10. These two questions are on all fours, and the compatibility of the contemplated customs régime with Article 88 cannot be established unless they have both been resolved.

This being the case, the conclusion at which I have arrived after much careful reflection is that the Court must either refuse to give the opinion asked for, or it must give it on

the question as a whole. I grant that the Court may refuse to give an opinion which would compel it to depart from the essential rules governing its activity as a tribunal (Advisory Opinion No. 5, p. 29), but I am unable to admit that the Court can answer a question other than that which has been put to it or confine itself to answering a part of that question. To my mind that would be an abuse of its powers.

It must now be asked what would be the relation of the Court's opinion on the question of fact mentioned above to the jurisdiction conferred on the Council of the League of Nations by Article 88 of the Treaty of Saint-Germain.

It has already been observed (*supra*, No. 1) that the question on which the Court's opinion is asked relates to the applicability of Article 88. That question is therefore a preliminary question as regards the Council's jurisdiction under that article. The question put to the Court is intended to establish whether, if the act in question falls under the scope of Article 88, Austria is bound either to abstain from it or to place the Council in a position in which it can exercise the discretionary powers conferred upon it by that article. It is therefore quite a different question from that which the Council would have to resolve if, that incompatibility being admitted, Austria were to ask for its consent.

On the other hand, there seems to me no doubt that the right of the Council under Article 88 to grant or withhold its consent also includes the right to decide whether the act it is called upon to authorize is really calculated to endanger Austria's independence. It would conflict with the meaning and the spirit of Article 88 if the Council were on this point bound by the opinion of any other body.

Accordingly, the only result of the Court's opinion on the above-mentioned question of fact—supposing of course that it was accepted by the Council—would be to settle the question of the applicability of Article 88 to the case in point. It would, however, in no way restrict the Council's discretionary powers, and Austria would remain free to use any means she might think fit in order to prove to the Council

that the proposed customs régime is not calculated to endanger her independence.

The Court's conclusion on this point is therefore of a provisional nature.

11.—The answer to the question whether the customs régime contemplated in the 1931 Protocol is, owing to its reasonably probable consequences, calculated to endanger Austria's independence, depends in my opinion upon the following considerations:

In the first place, account must be taken of the movement already in existence in Germany and Austria, the aim of which is to effect the political union of the two countries. Here we are confronted with a well-known fact and one therefore which the Court could take into consideration even if it had not been advanced by the interested Parties. This fact was, however, invoked on several occasions, and I do not think it was contested. Moreover, it is at the root of Article 80 of the Treaty of Versailles and Article 88 of the Treaty of Saint-Germain: indeed these articles were only adopted to check the movement towards the union of Germany and Austria, a movement which showed signs of very rapid development after the War.

This movement, which is based upon community of race, language and culture, and thus upon a very strong sentiment of common nationality, is further strongly encouraged by the difficult situation in which Austria was placed by the treaties of peace and which impelled her to seek the possibility of existence and development in union with other countries. Here again we are dealing with facts well known to all and established in the present proceedings.

It is in the light of these facts that we must ask what reasonably probable effects the Customs Union would have upon Austria's independence.

In view of the great disproportion in the economic strengths of Germany and Austria, it must be regarded as reasonably probable that Austria's economic life would sooner or later become dependent upon Germany's. Even if, in the absence of reliable information (and I must admit that insufficient light has been thrown on this aspect of the question), we

leave this point on one side, the Customs Union would beyond all dispute assimilate the economic life of these two countries, and its effect would therefore be to conform and strengthen the movement towards the incorporation of Austria within a single big German State. This movement would be supported by one of the strongest forces in social life, namely economic solidarity. I admit that economic union does not necessarily lead to political union, but its influence is very decidedly in that direction. Accordingly, if the tendency towards political unity already exists and is as active and powerful as it is in Germany and Austria, it seems to me quite reasonable to suppose that so close an economic union as that which would follow from a system of free trade between two countries surrounded by formidable customs barriers would be likely to turn the scales in favour of that movement. From this point of view, the Austro-German Customs Union must, in my opinion, be considered a fact which might compromise Austria's independence within the meaning of Article 88 of the Treaty of Saint-Germain.

Adopting this standpoint, I cannot attach great importance to the clauses in the Vienna Protocol which seek to loosen the bonds between the two countries and especially to safeguard Austria's right to withdraw from the Union. I quite agree that this Customs Union has had all possible regard for the independence of the two countries, and there is no doubt that the authors of the Protocol had this aim in view. Man's will, however, has only a limited influence over social forces like those which are urging Austria towards fusion with Germany, and in all probability the consequences of the union would ensue despite the precautions taken in the Protocol.

It is quite another question whether the danger to Austria's independence could not be eliminated by conditions placed upon its conclusion: in my opinion, for example, the danger would disappear or would be very much reduced as soon as Germany and Austria ceased to be the sole members. This consideration, however, does not apply in the present stage

of the proceedings when we have only to determine whether the régime as it stands comes within the scope of Article 88, although it might play a part in any subsequent proceedings before the Council.

Arguing still from the same standpoint, I find it difficult to attach importance to the fact that other customs unions have been regarded as perfectly compatible with the independence of States and have in fact exercised no appreciable influence over that independence. Everything depends upon the situation of the States which contracted these unions and, as these situations are never the same, the utmost care has to be taken in arguing from one case to another. The only pertinent historic precedent would appear to be the German *Zollverein*, owing to the analogy between the present situation of Germany and Austria and the situation of the various German States in the nineteenth century. I do not wish to exaggerate its importance, but it seems to me that the *Zollverein* played a by no means unimportant part in paving the way for German unity.

It may be asked whether there is not some contradiction in requiring that a State should exist and at the same time putting it in a position which makes its existence extremely difficult. I do not dispute that, but my duty as a judge is to take Article 88 and to apply it as it stands according to its letter and its spirit. And when I consider the real danger threatening Austria's independence against which this article is especially directed, and when I consider that, in order to avert this danger, Article 88 requires Austria, in the absence of the consent of the Council of the League of Nations, to abstain from "any act which might directly or indirectly or by any means whatever compromise her independence", it is, I confess, difficult for me to admit that an act such as the Customs Union contemplated in the Vienna Protocol does not come within the scope of this provision, and that it can be accomplished without the Council's authority. Further, I would ask what value and

relevance the second sentence in Article 88 would retain if it did not apply in this case.

12.—For these reasons, I have come to the conclusion that the Austro-German Customs régime, provided for in the Vienna Protocol of March 19th, 1931, would be incompatible with Article 88 of the Treaty of Saint-Germain, because it would be an act coming within the scope of the second sentence of that article, and that Austria is therefore obliged to abstain from it or to ask the consent of the Council of the League of Nations.

This being said, I have no hesitation in admitting that the said régime would also be incompatible with the Protocol of Geneva, which only applies the provisions of Article 88 to the matters there in issue.

From this point of view, and from this point of view only, I find it possible to accept the conclusion of the present Opinion.

(Signed) D. ANZILOTTI.